Know your rights

Know Your Rights When Working in the EU

Understand the basic protections that may apply to you as a legally employed non-EU worker, know what to check in your contract and permit, and know where to seek help if something goes wrong.

AUDIENCE
Candidate, Researcher, Student

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Rights and procedures vary by EU Member State, immigration status and employment arrangement. Use this guide as an orientation tool and always check the rules that apply in your destination country.

01

Know your terms

Contract, pay and working conditions.

02

Protect yourself

Equality, safety and social protection.

03

Get help

Changing jobs, complaints and support.

How to use this guide

Your rights travel with your employment but the details are national

Moving to an EU Member State for work is not only about obtaining the correct visa or residence/work authorisation. It is also important to understand the employment protections that apply once you are working legally.

EU law provides a common floor of protection in several areas, while national law, collective agreements and the conditions of your particular permit can add important details. The safest approach is to understand the general principles below and then confirm the country-specific rules that apply to you.

> **Important distinction**
>
> Your employment contract and your immigration permission are related, but they are not the same thing. A workplace dispute does not automatically answer what happens to your residence status, and a residence permit does not remove your employment rights. Check both sets of rules.

EMPLOYMENT

Contract, pay, hours, leave and dismissal.

PROTECTION

Safety, dignity, equality and representation.

STATUS & SUPPORT

Permit conditions, job changes, complaints and official help.

Before you start work, make sure you can answer:

- ☐ Who is my legal employer?
- ☐ What salary and working hours have I agreed to?
- ☐ What does my work/residence permit allow me to do?
- ☐ Where can I go for official help in my destination country?

> **Keep your own records**
>
> Keep copies of your employment contract, payslips, work schedules, important messages, residence/work authorisation and any official correspondence. These records can be important if you later need to clarify your rights or raise a complaint.

1. Understand Your Employment Terms

Know what you agreed to before you start working.

Before starting work, make sure you understand the essential conditions of your employment. Do not rely only on verbal promises.

Check that you have clear written information on:

- The identity of your employer;
- Your place of work;
- your job title or main responsibilities;
- your starting date and, where relevant, the duration of the contract;
- your salary and how often it will be paid;
- normal working hours and work schedule;
- paid leave entitlements;
- probation arrangements, where applicable; and
- the rules or notice requirements for ending the employment relationship.

> **Check before you sign**
>
> If the final contract differs materially from the offer you accepted for example in salary, location, job title or hours, ask for clarification before signing or travelling.

2. Fair Working Conditions

Your nationality does not remove the employment protections that apply to your work.

When working in an EU Member State, it is important to understand both your employment rights and your responsibilities in the country where you work.

Depending on the applicable national rules and your employment situation, you may have obligations and entitlements relating to areas such as **taxation, social security, public health insurance, pensions and unemployment protection**. The rules and contribution requirements differ between EU Member States, so you should check the arrangements that apply in your country of employment.

Trade unions may also provide support to workers. Trade unions are organisations that represent, protect and advance the collective interests of workers and may negotiate with employers on collective agreements and working conditions. They may also:

- support workers who have a grievance or problem at work;
- provide information and advice on work-related issues;
- support workers on matters such as low pay, workplace discrimination and precarious work; and

- provide access to other services available to their members.

Check the national rules and available worker-support mechanisms in the EU Member State where you are employed.

> **Country rules matter**
>
> Minimum wages, overtime rules, collective agreements, paid-leave arrangements and dismissal procedures differ across Member States. Check the official labour information for the country where you work.

3. Health, Safety and Dignity at Work

A safe workplace is a basic part of fair employment.

Workers are entitled to working conditions that protect their health, safety and dignity. Employers must follow applicable workplace health and safety rules and take appropriate steps to prevent harm.

Depending on the workplace and national rules, this can include:

- information about workplace risks;
- appropriate safety instructions and training;
- preventive measures and protective equipment where needed;
- reasonable rest periods; and
- paid annual leave in accordance with applicable rules.

> **If you believe work is unsafe**
>
> Use the internal workplace safety route where appropriate and check the labour inspectorate or other competent authority in your destination country. In an immediate emergency, contact the local emergency services.

4. Protection Against Discrimination

Employment decisions should not be based on protected personal characteristics.

EU rules provide protection against discrimination in employment on several grounds. National law may provide additional protections.

- sex;

- racial or ethnic origin;
- religion or belief;
- disability;
- age; and
- sexual orientation.

Discrimination can arise during recruitment and also in pay, working conditions, access to training, promotion and dismissal.

> **Harassment can also be a rights issue**
>
> If conduct at work is unwanted, degrading, intimidating or linked to a protected ground, do not assume you must tolerate it. Check your employer policy and the competent equality or labour body in your destination country.

5. Representation and Social Protection

Know which institutions can support you beyond the employer relationship.

Worker representation

Depending on national law, workers may have rights relating to freedom of association, trade-union membership and collective representation. Collective agreements can also influence pay and working conditions in some sectors.

Social security

Depending on your employment, residence status and the rules of the country where you work, you may be covered by national social-security arrangements.

- sickness benefits;
- maternity and paternity benefits;
- invalidity benefits;
- old-age pensions;
- employment injury or occupational accident protections; and
- unemployment benefits, where eligibility conditions are met.

> **Do not assume benefits are automatic**

> Eligibility, contribution periods and benefit levels differ between countries. Check the official social-security information of your destination country and keep evidence of registrations and contributions.

6. Changing Employer or Losing Your Job

Check your immigration conditions before making a change.

Some work and residence permissions may be linked to a particular employer, occupation or set of conditions. Other permits may allow more flexibility. Before resigning, accepting a new employer or stopping work, check what your permit requires.

Ask these questions first:

- ☐ May I change employer under my current status?
- ☐ Do I need to notify an authority or obtain approval first?
- ☐ Does a labour-market check or other national condition apply?
- ☐ If I lose my job, how long may I remain and what must I notify?
- ☐ Does my next employer need to complete any procedure?

> **Single permit framework**
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> For workers covered by the EU Single Permit framework, EU law includes provisions on equal treatment, employer changes subject to national conditions, and certain protections following unemployment. The exact procedure and conditions remain country-specific, and the framework does not apply in the same way to every EU Member State.

7. If Something Goes Wrong

You have the right to seek information, support and redress.

If you believe your employment rights are being violated, you do not have to deal with the situation alone. The correct route depends on the problem and the country.

Depending on the Member State, support may be available from:

- a national or regional labour inspectorate;
- the competent employment or migration authority;
- a trade union or workers' organisation;

- an equality body;
- an employment tribunal or court;
- an authorised legal-support organisation; or
- other competent national services.

If you need to raise a complaint, keep:

☐your employment contract and amendments;

☐payslips and bank-payment records;

☐records of working hours or shifts;

☐relevant emails, messages or written instructions;

☐copies of your visa/residence/work permission; and

☐any correspondence with the employer or authority.

> **Emergency number**
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> For police, ambulance or fire emergencies anywhere in the European Union, 112 can be used free of charge.
>
> **Emergency and consular support**
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> **For an immediate emergency in the EU**
>
> Call **112** for emergency assistance from the **police, ambulance or fire services**. The number is available throughout the European Union and can be called **free of charge from fixed and mobile phones**.
>
> National emergency numbers may also operate in individual EU Member States, but **112 is the common emergency number available across the EU**.
>
> **For consular assistance as an Indian national**
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> If you require consular assistance while living or working in an EU Member State, contact the **Indian Embassy or Consulate responsible for the country where you are staying**.
>
> The Ministry of External Affairs provides an official directory of Indian Missions abroad where you can find the relevant contact details.
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> The contact details of all Indian Embassies or Consulates are available here: https://www.mea.gov.in/indian-missionsabroad-new.htm.

Indian Missions Abroad:

Ministry of External Affairs – Indian Missions Abroad

If you have a consular grievance or require further assistance, you can also use the Ministry of External Affairs' **MADAD** portal or mobile application.

MADAD: Consular Services Management System

Keep the contact details of the Indian Embassy or Consulate in your destination country accessible after you arrive.

MADAD: http://madad.gov.in (or MADAD mobile App or helpline at 1800-11-3090 (toll free); 011-26885021 (International)).

8. Before You Move: Five Things to Remember

A final readiness check.

☐ I have read and understood my employment contract.

☐ I understand my salary, working hours, leave and deductions.

☐ I know exactly what my immigration permission allows me to do.

☐ I have saved copies of my key employment and immigration documents.

☐ I know where to find official labour and migration information for my destination country.

Important

This guide provides general orientation and does not replace the laws, collective agreements, permit conditions or official guidance of the EU Member State where you live and work. Rights and procedures can differ depending on your destination country, employment status and immigration route.